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FILED
Superior Court of California
County of San Francisco

JUL 16 2024

CLERK OF THE SUPERIOR COURT
By Rosie Noguera
Deputy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO

In re THE 2019 BEATRICE OI YUN CHOW REVOCABLE TRUST under agreement dated September 21, 2019	Case No. PTR-24-307301 ORDER DETERMINING EXISTENCE OF TRUST (Probate Code Section 17200) Date: July 15, 2024 Time: 9:00 a.m. Dept: 204

On May 8, 2024, Petitioner Elia Pochron ("Petitioner" or "Elia Pochron" or "trustee"), as named successor trustee of three separate revocable living trust instruments established by or purported to be established by decedent Beatrice Oi Yun Chow and all of which purport to govern the same trust property, filed with this Court in the above-referenced matter a verified Petition to Determine Existence of Trust ("Petition"), seeking an order from this Court pursuant to Probate Code Sections 17200(a) and 17200(b)(6), for an order instructing the trustee as to which of the three trust instruments is the valid instrument that should govern the trust property. The matter came on for hearing on July 15, 2024 at 9:00 a.m. in Department 204 of the above-named court.

On proof being made to the satisfaction of the court, the court now makes the following findings:

1. Due notice of the hearing on the Petition has been given in all respects as required by law.

2. Petitioner is the named successor trustee of the following trust instruments established by or purported to be established by decedent, all of which are the subject of this Petition: two trust instruments dated September 21, 2019, both titled the 2019 Beatrice Oi Yun Chow Revocable Trust (collectively sometimes referred to as the "2019 Trust") and an undated, unsigned trust instrument titled the 2023 Beatrice Oi Yun Chow Revocable Trust (the "2023 Trust"). As the named successor trustee of all three instruments, Petitioner has standing to bring this Petition.

3. This court has authority pursuant to Section 17200 of the Probate Code to determine the existence of a trust, and in doing so has the authority to make orders and take any other action necessary or proper to dispose of the matters presented by the petition.

4. This Court now determines that the 2023 Trust was never executed by Beatrice, and therefore the Balboa Street property cannot be deemed to be an asset of such 2023 Trust because such 2023 trust was not established. This Court further determines that the trust document attached hereto AF ~~as Exhibit A~~ is the document that Beatrice intended to be her valid revocable trust which would govern her property and its distribution at her death.

NOW THEREFORE IT IS HEREBY ORDERED, ADJUDGED, AND DECREED as follows:

1. That the trust instrument titled 2019 Beatrice Oi Yun Chow Revocable Trust dated September 21, 2019, a true and correct copy of which is attached hereto as Exhibit A, is the only valid trust executed by Beatrice Oi Yun Chow on September 21, 2019;

2. That any other trust instrument titled 2019 Beatrice Oi Yun Chow Revocable Trust dated September 21, 2019, other than the trust instrument referenced immediately above in Paragraph 1 of this Order, is not a valid trust;

3. That the unsigned trust instrument titled 2023 Beatrice Oi Yun Chow Revocable Trust is not a valid trust;

4. That Elia Pochron is the successor trustee of the trust instrument attached hereto as ~~Exhibit A.~~

It is so ordered.

~~Dated: _____, 2024~~

AF _____
Judge of the Superior Court
signature follows last attachment

2019 BEATRICE OI YUN CHOW REVOCABLE TRUST

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2019 BEATRICE OI YUN CHOW REVOCABLE TRUST

ARTICLE ONE. CREATION OF TRUST

1.1 Declaration

Beatrice Oi Yun Chow of San Francisco County, California, who is herein referred to as "the settlor" or "the trustee," depending on the context, hereby declares that she holds certain property (the "trust estate"), in trust, to be held, administered, and distributed as provided in this instrument. The settlor declares that any property listed on the attached Schedules is trust property.

1.2 Name of Trust

The name of the trust created by this instrument shall be the 2019 Beatrice Oi Yun Chow Revocable Trust.

1.3 Effective Date

This declaration shall be effective immediately on execution by the settlor-trustee.

1.4 Marital Status

The settlor is not currently married.

1.5 No Living or Deceased Children

The settlor has no living or deceased children.

ARTICLE TWO. TRUST ESTATE

2.1 Definition of Trust Estate

All property subject to this instrument from time to time is referred to as the "trust estate" and shall be held, administered, and distributed as provided in this instrument. The trustee shall hold, administer, and distribute the property described in the Schedule of Trust Assets (which is attached hereto and made a part of this trust instrument), any other property that may be hereafter

subject to this trust, and the income and proceeds attributable to all such property, in accordance with the provisions of this instrument.

2.2 Additions to Trust

From time to time, the trustee may accept additions to this trust from any source. All such additions shall become a part of the trust estate and shall be held, administered, and distributed in accordance with the terms of this instrument. That additional property shall become part of the trust estate upon written acceptance of it by the trustee. Any additions to the trust shall be made by designating in writing the property to be added. However, the titling of any account, deed, or similar asset in the name of the trustee, as trustee of this trust, or any alternate or successor trustee acting under this instrument, shall be deemed to be a transfer to this trust. Any designation by a third party, whether by will, deed, account title designation, or similar transfer, shall also be a transfer to the trust estate.

ARTICLE THREE. RIGHTS AND POWERS OF SETTLOR

3.1 Power of Revocation and Amendment

This trust may be amended, revoked, or terminated by the settlor, in whole or in part, at any time during her lifetime. After the settlor's death, this trust shall become irrevocable and shall not be subject to amendment after the death of the settlor.

3.2 Method of Revocation or Amendment

Any amendment, revocation, or termination of this trust shall be made by written instrument signed by the settlor and delivered (in person or by certified mail) to the trustee. An exercise of the power of amendment substantially affecting the duties, rights, and liabilities of the trustee shall be effective only if agreed to by the trustee in writing. The method of amendment and revocation provided in this section is the exclusive method of such amendment or revocation.

3.3 Delivery of Property After Revocation

After any revocation or termination, the trustee shall promptly deliver the designated property to the settlor.

3.4 Trustee's Retention of Assets on Revocation

In the event of any revocation of all or part of the trust, the trustee shall be entitled to retain sufficient assets to reasonably secure the payment of liabilities the trustee has lawfully incurred in administering the trust and any fees that have been earned by the trustee, until such time as those liabilities have been discharged and fees paid, unless the settlor indemnifies the trustee against loss or expense.

3.5 Exercise of Rights and Powers of Settlor By Others

Any right or power that the settlor could exercise personally under the terms of this instrument, including any power to amend, revoke, or terminate this trust, may be exercised for and on behalf of the settlor by any attorney in fact who, at the time of the exercise, is duly appointed and acting for the settlor under a valid and enforceable durable power of attorney executed by the settlor under the Uniform Durable Power of Attorney Act, or any successor statute, or, if there is no such attorney in fact, by a duly appointed and acting conservator of the settlor, after petition to the court in accordance with California Probate Code Section 2580, or any successor statute.

ARTICLE FOUR. DISTRIBUTIONS DURING SETTLOR'S LIFE

4.1 Payment of Income During Settlor's Life

So long as the settlor is living, the trustee shall pay to or apply for the benefit of the settlor all of the net income of the trust, in monthly or other convenient installments (but not less often than annually) as the settlor and the trustee may agree on from time to time.

4.2 Distributions of Principal During Settlor's Lifetime

From time to time during the settlor's lifetime, the trustee shall distribute to or apply for the benefit of the settlor as much of the principal of the trust as the trustee, in the trustee's discretion, deems proper for the settlor's comfort, welfare, and happiness. In exercising discretion, the trustee shall give the consideration that the trustee deems proper to all other income and resources then readily available to the settlor for use for these purposes and that are then known to the trustee. All decisions of the trustee regarding payments under this section, if any, are within the trustee's discretion.

4.3 Distributions of Principal at Request of Settlor

During the settlor's lifetime, the trustee shall distribute to the settlor such amounts from the principal of the trust, up to the whole thereof, as the settlor may from time to time request of the trustee in writing.

4.4 Distributions for Incapacitated Settlor

(a) If, at any time, the settlor is unable to request the trustee to distribute the net income or principal of the trust, the settlor's right to request may be exercised by an agent:

(i) acting for the settlor under a valid and enforceable durable power of attorney; or

(ii) acting for the settlor under a valid advance health care directive or comparable instrument.

Any agent's authority will be limited by the terms of the instrument governing the agent's authority.

(b) When an incapacitated settlor has a right to distributions on request, the trustee may make distributions as the trustee deems necessary for the settlor without receiving a request.

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ARTICLE FIVE. DISTRIBUTIONS AFTER SETTLOR'S DEATH

5.1 Special Cash Gifts

On the settlor's death, the trustee shall make the following distributions:

(a) The sum of fifteen thousand dollars ($15,000.00) to Elia Pochron, Beatrice Chow's friend, if she survives the settlor, and if she does not survive the settlor, this gift shall lapse, as long as Elia Pochron assumes the role of successor trustee.

(b) If, and only if, Petrina Grube and Roger Wickstrom (wife and husband) assume the role or successor co-trustees, then the sum of fifteen thousand dollars ($15,000.00) to Petrina Grube and Roger Wickstrom, if they both survive the settlor, and if both of them do not survive the settlor, this gift shall lapse. If either Petrina or Roger become the sole successor trustee, then the entire gift shall be paid to him or her.

5.2 Special Cash Gift to Charity

On the settlor's death, the trustee shall distribute the sum of twenty thousand dollars ($20,000.00) to St. James Episcopal Church. If the charity fails for any reason to take the gift, or if on the date of the settlor's death the charity is not then operating for charitable purposes within the meaning of Internal Revenue Code Section 2055 and the regulations under Internal Revenue Code Section 2055(a), this gift shall lapse.

5.3 Special Gift of 12th Avenue property

On the settlor's death, the trustee shall sell the real property known as 1274 12th Avenue in San Francisco, California 94122; APN: Lot 028, Block 1739, and all of the settlor's interest in the insurance on that property. This property shall pass subject to any liens and encumbrances, without exoneration. The proceeds from the sale shall be distributed as follows: to Agnes Yin Lo, the sum of $200,000.00 if she survives the settlor otherwise to her estate; to Nelson Y. Chow the sum of $100,000.00 if he survives the settlor otherwise this gift shall lapse; to Anne Man Chow the sum of $100,000.00 if she survives the settlor otherwise this gift shall lapse; to Michael Hee Khai Wong the sum of $400,000.00 if he survives the settlor otherwise to his estate;

to Hee Yen Davies the sum of $50,000.00 if she survives the settlor otherwise to her estate; to Hee Mae Wong the sum of $50 if she survives the settlor otherwise this gift shall lapse; with the remaining proceeds going to Henry Hee Henn Wong.

5.4 Special Gift of Balboa Street property

On the settlor's death, the trustee shall donate the real property known as 3009-3011 Balboa Street in San Francisco, California; APN: Block 1613 Lot 001C, and all of the settlor's interest in the insurance on that property to Saint James Episcopal Church in San Francisco, located at 4620 California Street, San Francisco, California 94118, for the church's Endowment Fund.

5.5 Payment of Death Taxes, Debts, and Expenses on Statement From Personal Representative

After the settlor's death, on receipt by the trustee of a written statement from the personal representative of the settlor's estate requesting that the trustee pay death taxes, debts, and expenses (as defined in Article Seven), with respect to any property in the settlor's estate, the trustee shall pay, either directly or to the personal representative, any amounts requested by the personal representative for those purposes, in the manner specified below. The trustee may rely on the personal representative's statement and shall not be liable for any act or omission by the personal representative in protesting or failing to protest the legality, propriety, or amount of the death taxes, debts, or expenses. If there is no personal representative, the trustee shall make the payments directly. Payments of debts and expenses shall be made by the trustee from the trust estate. All death taxes payable by reason of the settlor's death shall also be paid by the trustee from the trust estate. The trustee shall not pay death taxes, debts, and expenses or other obligations of the settlor or the settlor's estate from proceeds of insurance policies on the

obligations of the settlor or the settlor's estate from proceeds of insurance policies on the settlor's life if making those payments would be the sole cause of the proceeds being includable in the settlor's gross estate for federal estate tax purposes.

5.6 Trustee's Power to Defer Division or Distribution

Whenever the trustee is directed to divide any part of the trust estate or distribute trust assets on the death of the settlor, the trustee may, in the trustee's discretion, defer actual division or distribution for such reasonable period of time as is needed to effectively identify, take possession of, value, divide, and distribute the assets of the trust. During this time of deferral, the trustee may manage the trust assets through a single administrative trust. The ability of the trustee to delay division or distribution shall not affect the vesting of interests, which shall be as of the date of death.

5.7 Disposition of Trust Estate

On the death of the settlor, the trust estate (except for the special gifts that are to be distributed pursuant to the special gift provisions above) shall be disposed of as follows:

(a) The trustee shall distribute the trust property (including all income then accrued but uncollected and all income then remaining in the hands of the trustee) outright to Henry Hee Henn Wong if he survives the settlor.

(b) If Henry fails to survive the settlor, the trustee shall distribute the trust property outright Agnes Y. Lo.

(c) If the trust property is not completely disposed of by the preceding provisions, the undisposed-of portion shall be distributed to Agnes Y. Lo.

ARTICLE SIX. TRUSTEE

6.1 Successor Trustees

(a) Successor Trustees

If the office of trustee becomes vacant, by reason of death, incapacity, or any other reason, and no successor trustee has been designated under any other provision of this trust instrument, the following, in the order of priority indicated, shall be trustee or cotrustees (as the case may be):

First: Elia Pochron, Beatrice Chow's friend; phone number (415) 221-5004.

Second: Roger Wickstrom and Petrina Grube (husband and wife), Beatrice Chow's friends; phone number (410) 752-8421; or any one or both of them, as cotrustees.

If all those named above are or become unable (by reason of death, incapacity, or any other reason) or unwilling to serve or continue to serve as successor trustee, a new trustee or set of cotrustees shall be appointed by the court.

(b) No Replacement of Cotrustees

If, at any time when two or more persons or entities are serving as cotrustees, any one or more (but less than all) of them are unable or unwilling for any reason to continue to serve as cotrustees, and no successor cotrustee has been designated under any other applicable provisions of this trust instrument, no new cotrustee shall be appointed. Rather, the remaining cotrustee or cotrustees shall have full power to act as trustee or cotrustees and to continue the trust administration.

6.2 General Trustee-Related Provisions

(a) Settlor's Power to Designate Successor Trustees or Cotrustees

At any time, the settlor may designate either or both of the following:

(i) Any suitable person or entity to act as a successor cotrustee if a cotrustee dies, becomes incapacitated, or is otherwise unable or unwilling to continue to act as cotrustee.

(ii) One or more suitable persons or entities to act as a successor trustee, or as successor cotrustees, if the initial cotrustees die, become incapacitated, or are otherwise unable or unwilling to continue to act as cotrustees.

Any designation under this section shall be made by a signed writing delivered to the person or entity designated as successor trustee or cotrustee. The settlor may revoke, amend, or replace the written instrument designating the successor trustee or cotrustee at any time before a particular vacancy is filled. If more than one designation is made under this section, only the most recent designation shall be valid.

(b) Definition of Trustee

Reference in this instrument to "the trustee" shall be deemed a reference to whoever is serving as trustee or cotrustees, and shall include alternate or successor trustees or cotrustees, unless the context requires otherwise.

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(c) Removal and Replacement of Trustee by Settlor

The settlor shall have the power, at any time and for any reason, with or without cause, to remove any trustee acting under this instrument, and notwithstanding any other provision of this instrument, designate another trustee to replace the removed trustee. Removal shall be effected by giving a written notice of removal to the trustee to be removed and to the designated successor. The removal shall become effective on the delivery to the settlor of a written acceptance of the trust by the successor trustee, and the settlor shall promptly notify the trustee being removed of the receipt of that acceptance.

(d) Waiver of Bond

No bond or undertaking shall be required of any individual who serves as a trustee under this instrument.

(e) Compensation of Individual Trustees

Each individual who is a trustee under this instrument shall be entitled to reasonable compensation for services rendered, payable without court order.

(f) Procedure for Resignation

Any trustee may resign at any time, without giving a reason for the resignation, by giving written notice, at least thirty (30) days before the time the resignation is to take effect, to the settlor, if living, to any other trustee then acting, to any persons authorized to designate a successor trustee, to all trust beneficiaries known to the trustee (or, in the case of a minor beneficiary, to the parent or guardian of that beneficiary) and to the successor trustee. A resignation shall be effective on written acceptance of the trust by the successor trustee.

(g) General Powers of Trustee

To carry out the purposes of the trust created under this instrument, and subject to any limitations stated elsewhere in this instrument, the trustee shall have all of the following powers, in addition to all of the powers now or hereafter conferred on trustees by law:

(i) With or without court authorization, sell (for cash or on deferred payments, and with or without security), convey, exchange, partition, and divide trust property; grant options for the sale or exchange of trust property for any purpose, whether the contract is to be performed or the option is to be exercised within or beyond the term of the trust; and lease trust property for any purpose, for terms within or extending beyond the expiration of the trust, regardless of whether the leased property is commercial or residential and regardless of the number of units leased.

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(xi) Procure and carry, at the expense of the trust, insurance in such forms and in such amounts as the trustee deems advisable to protect the trust property against damage or loss, and to protect the trustee against liability with respect to third persons.

(xii) Enforce any obligation owing to the trust, including any obligation secured by a deed of trust, mortgage, or pledge held as trust property, and purchase any property subject to a security instrument held as trust property at any sale under the instrument.

(xiii) Extend the time for payment of any note or other obligation held as an asset of, and owing to, the trust, including accrued or future interest, and extend the time for repayment beyond the term of the trust.

(xiv) Pay or contest any claim against the trust; release or prosecute any claim in favor of the trust; or, in lieu of payment, contest, release, or prosecution, adjust, compromise, or settle any such claim, in whole or in part, and with or without consideration.

(xv) At trust expense, prosecute or defend actions, claims, or proceedings of whatever kind for the protection of the trust property and of the trustee in the performance of the trustee's duties, and employ and compensate attorneys, advisers, and other agents as the trustee deems advisable.

(xvi) Exercise dominion and control in the exercise of the trustee's discretion, over any digital asset, as defined in the section of this instrument titled Access to Digital Assets, owned by settlor or assigned to the trust.

(h) Power to Retain Trust Property

The trustee shall have the power to retain property received into the trust at its inception or later added to the trust, without regard to whether the trust investments are diversified, until, in the judgment of the trustee, disposition of the property should be made.

(i) Trustee's Power to Invest Trust Property

The trustee shall have the power to invest in and acquire every kind of property, real, personal, or mixed, including but not limited to improved and unimproved real property, corporate and government obligations of every kind, stocks (both preferred and common), shares of mutual funds of any character, shares of investment companies, interest-bearing accounts, and foreign assets. The trustee is under no duty to diversify investments. This section of the trust instrument shall be construed as allowing the trustee a broader latitude with respect to trust investments than would be permitted by the California Uniform Prudent Investor Act, as amended from time to time.

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(j) Power to Access Digital Assets

The settlor consents to the disclosure to the trustee of all the settlor's digital assets including the contents of electronic communications sent or received by settlor. For purposes of this instrument, "digital asset" has the same meaning as set forth in California Probate Code section 871, or applicable successor statute. This authority is intended to constitute "consent to disclosure of the content of electronic communications" under the Revised Uniform Fiduciary Access to Digital Assets Act (California Probate Code sections 870 et seq. or applicable successor statute), and "lawful consent" under the Stored Communications Act (18 U.S.C. sections 2701 et seq. or applicable successor statute), and the Computer Fraud and Abuse Act (19 U.S.C. section 1030 or applicable successor statute), to the extent that such consent is required.

(k) Divestment of Unproductive Property

The trustee shall have the power to retain property only so long as that property is income-producing. If any income-producing property ceases to produce income, the trustee shall, within a reasonable amount of time, replace the unproductive property with income-producing property.

(l) Power to Operate Business

The trustee shall have the power to hold and operate any business or enterprise that is or becomes trust property, on such terms and for such a time as the trustee, in the trustee's discretion, deems advisable; to purchase, acquire, invest in, or otherwise participate in, any business or other enterprise on behalf of the trust; or to sell, dissolve, liquidate, or terminate any such business. The trustee shall also have the power to incorporate, reorganize, or otherwise change the form of a business or enterprise that is part of the trust, through merger or consolidation of two or more enterprises or otherwise, and to participate in that business or enterprise as a sole proprietor, as a general or limited partner, as a shareholder, or in any other capacity. Any operation, sale, purchase, acquisition, investment in, or dissolution or liquidation of a business interest, in good faith, shall be at the risk of the trust, and without liability on the part of the trustee for any resulting losses. The trustee shall also have the power to contribute capital or loan money to the business or enterprise on such terms and conditions as the trustee deems advisable.

(m) No Duty to Segregate

Each trust created under this instrument shall constitute a separate trust and be administered accordingly; however, the assets of all of the trusts may be combined for bookkeeping purposes and held for the trust beneficiaries without physical division into separate trusts until time of distribution.

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(n) Power to Divide or Combine Trusts

The trustee shall have the power to divide a single trust into separate shares, each to be administered in accordance with the terms and conditions of the single trust from which they were created, when the trustee, in the trustee's discretion, determines that division is desirable or advisable in view of tax considerations (including considerations related to the income tax, the gift tax, the estate tax, or the generation-skipping transfer tax) or other objectives of the trusts and their beneficiaries. The trustee shall not be required to make a physical segregation or division of the various trust shares created under this trust instrument, except as segregation or division may be required by reason of the termination and distribution of any of the trusts, but the trustee shall keep separate accounts and records for different undivided interests. The trustee, in the trustee's discretion, shall have the further power to combine two or more trusts having substantially the same terms into a single trust for purposes of administration, when tax or other factors indicate that such combination would be desirable or advisable.

(o) Trustee's Power to Determine Income and Principal

Unless otherwise specifically provided in this instrument, the determination of all matters with respect to what is principal and income of any trust under this instrument and the apportionment and allocation of receipts, expenses, and other charges between principal and income shall be governed by the provisions of the California Uniform Principal and Income Act from time to time existing. The trustee in the trustee's discretion shall determine any matter not provided for either in this instrument or in the California Uniform Principal and Income Act.

(p) Early Termination of Trusts

The trustee shall have the power, in the trustee's discretion, to terminate any trust created under this trust instrument whenever the fair market value of the trust falls below thirty thousand dollars ($30,000.00), or becomes so small in relation to the costs of administration as to make continuing administration uneconomical, or contrary to the purposes of the trust. Continuing administration shall be uneconomical if the trustee determines that, with reference to the trust fee schedules then in effect for corporate fiduciaries in the area in which the trust is being administered, the trust would be subject to the minimum trust administration fees of those fiduciaries, regardless of the value of the trust. On termination, the trustee shall distribute the principal and any accrued or undistributed net income to the income beneficiaries in proportion to their shares of the income. If no fixed amount of income is payable to specific beneficiaries, the trustee shall distribute the principal and any accrued or undistributed net income in equal shares to those beneficiaries who would then be entitled to income payments from the trust.

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(q) Division or Distribution in Cash or Kind

In order to satisfy a pecuniary gift or to distribute or divide trust assets into shares or partial shares, the trustee may distribute or divide those assets in kind, or divide undivided interests in those assets, or sell all or any part of those assets and distribute or divide the property in cash, in kind, or partly in cash and partly in kind. Property distributed to satisfy a pecuniary gift under this instrument shall be valued at its fair market value at the time of distribution.

(r) Payments to Legally Incapacitated Persons

If at any time any trust beneficiary is a minor, or it appears to the trustee that any trust beneficiary is incapacitated, incompetent, or for any other reason not able to receive payments or make intelligent or responsible use of the payments, then the trustee, in lieu of making direct payments to the trust beneficiary, may make payments to the beneficiary's conservator or guardian; to the beneficiary's custodian under the Uniform Gifts to Minors Act or Uniform Transfers to Minors Act of any state; to the beneficiary's custodian under the California Uniform Transfers to Minors Act until the beneficiary reaches the age of twenty-five (25); to one or more suitable persons as the trustee deems proper, such as a relative of or a person residing with the beneficiary, to be used for the beneficiary's benefit; to any other person, firm, or agency for services rendered or to be rendered for the beneficiary's assistance or benefit; or to accounts in the beneficiary's name with financial institutions. If there is no custodian then-serving or nominated to serve by the settlor for a beneficiary, the personal representative or trustee, as the case may be, shall designate the custodian. The receipt of payments by any of the foregoing shall constitute a sufficient acquittance of the trustee for all purposes.

(s) Trustee's Liability

No trustee shall be liable to any interested party for acts or omissions of that trustee, except those resulting from that trustee's willful misconduct or gross negligence. This standard shall also apply regarding a trustee's liability for the acts or omissions of any cotrustee, predecessor trustee, or agent employed by the trustee.

(t) Written Notice to Trustee

Until the trustee receives written notice of any death or other event on which the right to payments from any trust may depend, the trustee shall incur no liability for disbursements made in good faith to persons whose interests may have been affected by that event.

(u) Duty to Account

The trustee shall not be required to render periodic accounts to any person, but shall render accounts at the termination of a trust and on a change of trustee to the persons and in the manner required by law. When a predecessor trustee has failed to render accounts as required under this provision, the successor trustee may, but need

not, render accounts for such period with reasonable efforts without incurring any additional liability for acts of a predecessor trustee, other than as already provided under California law. This provision is intended to permit the successor trustee to render accounts for the predecessor without creating any additional duty to investigate or to account. Nonetheless, if in the course of rendering accounts left undone by the predecessor trustee, the successor trustee obtains knowledge of a situation that may constitute a breach of trust committed by the predecessor trustee; the successor trustee shall deal with such knowledge in accordance with the successor trustee's fiduciary duties and powers.

(v) Mandated Disclosures Upon Incapacity of the Settlor

If the settlor becomes incapacitated, the trustee shall account to those persons who will become beneficiaries of income and/or principal distributions from the trust estate immediately following the death of the settlor in addition to accounting to the settlor, any person who may be acting as conservator of the estate of the settlor and any person who may be acting as agent under the settlor's durable power of attorney for property management. If the settlor becomes incapacitated, the trustee shall provide a copy of this instrument and any amendments hereto to those persons who will become beneficiaries of income and/or principal distributions from the trust estate immediately following the death of the settlor.

ARTICLE SEVEN. CONCLUDING PROVISIONS

7.1 Perpetuities Savings Clause

Notwithstanding any other provision of this instrument, every trust created by this instrument shall terminate no later than twenty-one (21) years after the death of the last survivor of Agnes Y. Lo who are alive at the creation of the trust. For purposes of this perpetuities savings clause, a trust shall be deemed to have been created on the date the trust becomes irrevocable or the date of the death of the settlor, whichever occurs first. If a trust is terminated under this section, the trustee shall distribute all of the principal and undistributed income of the trust to the income beneficiaries of the trust in the proportion in which they are entitled (or eligible, in the case of discretionary payments) to receive income immediately before the termination. If that proportion is not fixed by the terms of the trust, the trustee shall distribute all of the trust property to the persons then entitled or eligible to receive income from the trust outright in a

manner that, in the trustee's opinion, will give effect to the intent of the settlor in creating the trust.

7.2 No-Contest Clause

If any beneficiary under this instrument, singularly or in combination with any other person or persons, directly or indirectly, and without probable cause challenges the validity of this instrument on any of the grounds listed below, then the right of that person to take any interest given to him or her by this instrument shall be void, and any gift or other interest in the trust property to which the beneficiary would otherwise have been entitled shall pass as if he or she had predeceased the settlor:

(a) Forgery;

(b) Lack of due execution;

(c) Lack of capacity;

(d) Menace, duress, fraud, or undue influence;

(e) Revocation pursuant to the terms of this instrument or applicable law;

(f) Disqualification of a beneficiary under California Probate Code section 21380.

7.3 Definition of Incapacity

(a) For purposes of this instrument, a person is deemed "incapacitated" or deemed to suffer from "incapacity" if any of the following circumstances apply:

(i) The person is unable to provide properly for that person's own needs for physical health, food, clothing, or shelter; to manage substantially that person's own financial resources; or to resist fraud or undue influence.

(ii) Either a medical doctor, board-certified neuropsychologist, or a board-certified psychiatrist, not related by blood or marriage to any trustee or beneficiary, examines such person and declares under penalty of perjury that such person is either temporarily or permanently incapacitated, according to generally accepted medical definitions.

(iii) The person is operating under a legal disability, such as a duly established conservatorship.

(iv) The court makes a finding that the person is either temporarily or permanently incapacitated under the criteria set forth in Probate Code Section 810 et seq.

(b) In case of temporary incapacity of a sole trustee, the successor trustee designated under this instrument shall serve during the period of temporary incapacity as though he or she were the only trustee. In case of temporary incapacity of a cotrustee, the other cotrustee shall make any and all decisions during the period of temporary incapacity as though that cotrustee were the only trustee.

(c) Any trustee deemed to be temporarily incapacitated shall be deemed to be permanently incapacitated ninety (90) days after the determination of temporary incapacity unless a determination of capacity is made within that 90-day period. If a determination of capacity is made, the trustee may resume serving as trustee. If there is a subsequent determination of incapacity, the trustee has another 90-day period to obtain a determination of capacity.

(d) Any successor trustee or cotrustee serving in place of a temporarily incapacitated trustee shall not be relieved of liability until that trustee's account has been settled or an account has been waived by a majority of all current beneficiaries of the trust.

(e) If any trustee or any beneficiary whose capacity is in question disputes the determination of incapacity under any of the standards listed above, such person may petition the court for a finding regarding that person's capacity. The court's finding shall be conclusive. If the court determines that the trustee or other person whose capacity is in question has capacity, the trust property shall bear all expenses associated with the examination or court proceeding. If the court sustains the determination of incapacity, the individual challenging the determination of incapacity shall bear all expenses of the examination or court proceeding.

(f) Each individual trustee agrees to cooperate in any examination reasonably necessary for the purpose of determining capacity, agrees to waive the doctor-patient privilege in respect to the results of such examination, and agrees to provide written authorization in compliance with the privacy regulations under the Health Insurance Portability and Accountability Act of 1996 (42 U.S.C. Section 1320d) and the provisions of California Civil Code Section 56.10 for the disclosure and use of that trustee's health information and medical records to the extent that such disclosure and use are necessary to make a determination of the trustee's capacity. Refusal to submit to the examination, to provide the waiver, or to provide the written authorization when requested by the successor trustee shall be deemed a resignation by that trustee.

7.4 Definition of Education

As used in this instrument, the term "education" refers to the following:

(a) Education at public or private elementary, junior high, middle, or high schools, including boarding schools;

(b) Undergraduate, graduate, and postgraduate study in any field, whether or not of a professional character, in colleges, universities, or other institutions of higher learning;

(c) Specialized formal or informal training in music, the stage, the handicrafts, or the arts, whether by private instruction or otherwise; and

(d) Formal or informal vocational or technical training, whether through programs or institutions devoted solely to vocational or technical training, or otherwise.

ARTICLE EIGHT. SIGNATURE AND EXECUTION

8.1 Execution

I certify that I have read the foregoing declaration of trust and that it correctly states the terms and conditions under which the trust estate is to be held, administered, and distributed. As settlor of the trust created by this declaration of trust, I approve this declaration of trust in all particulars, and agree to be bound by its terms and conditions. As trustee of the trust created by this declaration of trust, I approve this declaration of trust in all particulars, and agree to be bound by its terms and conditions.

Executed on September 21, 2019, at San Francisco, California.

SETTLOR-TRUSTEE

Beatrice Oi Yun Chow

Beatrice Oi Yun Chow

SCHEDULE OF TRUST ASSETS

1. Real property commonly known as 1274 12th Avenue in San Francisco, more specifically described as follows:

THE LAND REFERRRED TO HEREIN BELOW IS SITUATED IN THE CITY OF SAN FRANCISCO, COUNTY OF SAN FRANCISCO, STATE OF CALIFORNIA

Beginning at a point on the Easterly line of 12th Avenue, distant thereon 125 feet Northerly from the Northerly line of Irving Street; running thence Northerly along said line of 12th Avenue 25 feet; thence at a right angle Easterly 120 feet; thence at a right angle Southerly 25 feet; thence at a right angle Westerly 120 feet to the point of beginning.

Being a portion of Outside Land Block No. 662

APN: Lot 028, Block 1739.

2. Real Property commonly known as 3009-3011 Balboa Street in San Francisco, California; more specifically described as follows:

The following described real property in the City of San Francisco, county of San Francisco, State of California

Beginning at a point on the Southerly line of Balboa Street, distant thereon 25 feet Westerly from the Westerly line of 31st Avenue; running thence Westerly and along said line of Balboa Street 25 feet; thence at a right angle Southerly 68 feet and 5 inches; thence at a right angle Easterly 25 feet; thence at a right angle Northerly 68 feet 5 inches to the point of beginning.

Being a portion of Outside Land Block No. 350

APN: Block 1613 Lot 001C.

3. Checking Account at Wells Fargo Bank number:

4. Checking and Money Market accounts at Union Bank, numbers:

5. Checking and Savings accounts at Bank of America, numbers:

6. Checking and Savings accounts and a Certificate of Deposit at Citibank, numbers:

7. Checking and Savings accounts at Chase Bank, numbers:

Dated: 7/15/24

JUDGE OF THE SUPERIOR COURT

ROSS C. MOODY